

DEVELOPER PROTECTION & DATA SECURITY CONTRACTOR PACKET

Confidentiality • Software Development • IP Assignment • Data Access & Security

Reusable template for developers, programmers, AI contractors, web/app builders, database administrators, automation specialists, and other technology contractors.

IMPORTANT: This template is designed as a strong business starting point, not individualized legal advice. Have licensed counsel review governing law, privacy obligations, worker classification, restrictive covenants, remedies, and any regulated data requirements before deployment.

PART I - CONFIDENTIALITY, NON-DISCLOSURE, DATA SECURITY & INTELLECTUAL PROPERTY AGREEMENT

Effective Date: _____

Company / Disclosing Party: LaTarence Dunbar L3C

Developer / Contractor / Receiving Party: _____

1. Purpose and Authorized Use

The Receiving Party may access confidential, proprietary, technical, business, client, or other sensitive information solely to perform services expressly authorized by the Company (the "Authorized Purpose"). Access is not permission to independently copy, retain, disclose, sell, monetize, train systems on, or otherwise exploit Company information.

2. Confidential Information

- Source code, object code, scripts, algorithms, repositories, software architecture, databases, schemas, APIs, integrations, technical documentation, deployment configurations, and credentials.
- AI prompts, agents, bots, workflows, knowledge bases, datasets, training materials, automation logic, model configurations, and proprietary AI methods.
- Grant databases, funding research, grant applications, proposals, templates, grant-writing systems, client strategies, and proprietary funding methods.
- Client, customer, donor, sponsor, vendor, employee, contractor, student, participant, volunteer, and prospect information.
- Business plans, pricing, contracts, financial information, CRM records, marketing plans, designs, curricula, recordings, presentations, trade secrets, and proprietary processes.
- Passwords, usernames, API keys, access tokens, SSH keys, recovery codes, security configurations, and authentication information.
- Third-party information that the Company is obligated to protect and any information a reasonable person would understand to be confidential.

3. Access Restrictions

- Use Confidential Information only for the Authorized Purpose and only to the minimum extent necessary.
- Do not access systems, repositories, accounts, folders, databases, or records outside the scope expressly authorized.
- Do not bypass security controls, logging, authentication, permissions, or access restrictions.
- Do not share credentials or permit another person to use assigned credentials.
- Immediately report accidental or unauthorized access.

4. Prohibited Copying, Extraction, and Transfer

Unless expressly authorized in writing for the project, the Receiving Party shall not download or export databases; scrape Company systems; create unauthorized backups; clone repositories to unauthorized devices or accounts; transfer data to personal email, personal cloud storage, USB media, external servers, or unauthorized applications; photograph or screen-record confidential materials for unauthorized purposes; build independent databases from

Company information; sell, license, publish, disclose, or monetize Company information; or retain copies after the engagement ends.

5. Artificial Intelligence Restrictions

Without prior written authorization, Confidential Information, source code, client data, proprietary documents, prompts, datasets, or credentials shall not be submitted to third-party generative AI or machine-learning services. Company information shall not be used to train, fine-tune, benchmark, improve, or develop a model, dataset, product, or service for the Receiving Party or any third party.

6. Intellectual Property and Work Product

To the fullest extent permitted by law, original deliverables and work product specifically created within the scope of services and paid for by the Company ("Work Product") shall be owned by the Company, subject to any pre-existing materials expressly disclosed in writing. Where legally applicable, qualifying Work Product is commissioned as work made for hire. To the extent Work Product does not qualify as work made for hire, the Receiving Party assigns to the Company all right, title, and interest in such Work Product upon payment, including applicable copyrights and other intellectual-property rights.

7. Pre-existing and Third-Party Materials

Before incorporation, the Receiving Party shall disclose in writing all pre-existing proprietary code, open-source components, licensed libraries, commercial code, AI-generated components subject to third-party terms, or other intellectual property not being transferred to the Company. The Receiving Party shall not knowingly introduce components that impose licensing obligations inconsistent with the Company's written requirements.

8. Subcontractors

No subcontractor, freelancer, offshore developer, consultant, employee, AI service, or other third party may receive access to Confidential Information without prior written authorization. Approved persons must be bound by written confidentiality and security obligations at least as protective as this Agreement.

9. Security Incidents

The Receiving Party shall notify the Company without unreasonable delay after discovering actual or reasonably suspected unauthorized access, disclosure, data extraction, credential compromise, repository cloning, malware, loss of Company information, or other material security incident. The Receiving Party shall reasonably cooperate in containment, investigation, remediation, and legally required notification.

10. Return and Deletion

1. Stop accessing Company systems upon request, revocation, or termination.
2. Return Company property and credentials.
3. Delete Company Confidential Information from devices and accounts under the Receiving Party's control except where retention is legally required.
4. Delete unauthorized exports, backups, clones, tokens, and copies.
5. Upon request, certify in writing that the foregoing steps have been completed.

11. Term and Survival

Confidentiality obligations survive termination for _____ years. Trade-secret obligations survive for as long as the information remains legally protectable as a trade secret. Credentials, personal information, and legally protected data remain protected for the period required by applicable law.

12. Exclusions and Compelled Disclosure

Confidential Information excludes information the Receiving Party can document was lawfully known without restriction before disclosure, became public without breach, was independently developed without use of Confidential Information, or was lawfully obtained from an authorized third party. If legally compelled to disclose protected information, the Receiving Party shall, when legally permitted, promptly notify the Company and disclose only what is legally required.

13. Remedies

Unauthorized disclosure or misuse may cause harm for which monetary damages may be inadequate. Subject to applicable law, the Company may seek injunctive or equitable relief and any other remedies available under law or an enforceable agreement. This clause does not create remedies unavailable under applicable law.

14. Governing Law

State/Commonwealth: _____ . Venue/forum, if any:

_____.

COMPANY / CLIENT

Legal Name: LaTarence Dunbar L3C

Authorized Representative: His Excellency Coach
LaTarence Dunbar Bey

Title: CEO | Founder

Signature: _____

Date: _____

DEVELOPER / CONTRACTOR

Legal Name: _____

Company: _____

Email: _____

Signature: _____

Date: _____

PART II - SOFTWARE DEVELOPMENT & TECHNOLOGY SERVICES AGREEMENT

1. Project

Project Name: _____

Statement of Work / Scope: _____

Start Date: _____ Target Completion: _____

Compensation / Milestones: _____

2. Company-Controlled Infrastructure

Unless the Company expressly approves otherwise in writing, production repositories, source-control organizations, domains, DNS, cloud accounts, hosting, databases, analytics, payment integrations, app-store accounts, API accounts, and administrator credentials shall be created in or transferred to Company-controlled accounts. The Contractor shall not make itself the sole administrator or sole recovery contact for a production system.

3. Repository and Source-Code Requirements

- All material project source code shall be committed to the Company-designated repository on a regular basis.
- No undisclosed parallel repository or hidden production branch may be maintained.
- The Company shall receive administrator or owner-level access appropriate to the service.
- Credentials and deployment instructions necessary for continuity shall be documented.
- Source code and documentation may not be withheld as leverage in a payment or business dispute; disputed payment rights must be pursued through lawful contractual remedies.

4. Milestones, Acceptance, and Payment

Deliverables shall be tied to written milestones. A milestone is accepted when the Company confirms acceptance in writing or when another acceptance mechanism stated in the Statement of Work is satisfied. Payment terms: _____

Nothing in this section permits either party to destroy, disable, encrypt, lock, sabotage, or improperly retain the other party's property or data.

5. Change Control

Material scope, timeline, architecture, cost, data access, third-party integrations, or security changes require written approval. Informal discussions do not authorize material expansion of system access.

6. Secure Development

- Use unique credentials and multifactor authentication where available.
- Do not hard-code production secrets in public or unauthorized repositories.
- Use Company-approved secret-management and deployment practices where provided.
- Promptly remediate known material vulnerabilities introduced by the Contractor.
- Do not intentionally insert backdoors, time bombs, disabling code, credential harvesters, undisclosed telemetry, malicious code, or unauthorized remote-access mechanisms.

7. Data Minimization

The Contractor shall request and access only the data reasonably required to perform the work. Production client data should not be copied into development or testing environments unless specifically authorized and appropriately protected.

8. Third-Party Services and Open Source

The Contractor shall maintain a reasonable record of material third-party services, libraries, licenses, APIs, and open-source components used in the project and disclose material recurring fees or license restrictions before commitment where practicable.

9. Backups and Business Continuity

Where backup responsibility is within the Contractor's scope, backups shall be maintained according to the written Statement of Work. The Contractor shall not delete or disable Company backups except pursuant to written authorization.

10. Termination and Transition

Upon termination or completion, the Contractor shall promptly provide then-current source code, documentation, credentials under its control, configuration information, deployment instructions, and other Company property reasonably necessary for transition. The Contractor shall cease access after revocation and cooperate in a commercially reasonable transition as required by the Statement of Work.

11. No Publicity

The Contractor may not use the Company's name, logos, client names, screenshots, source code, project details, or Confidential Information in a portfolio, case study, social-media post, sales presentation, or publicity without prior written permission.

12. Independent Contractor

Unless otherwise established by applicable law or a separate agreement, the Contractor performs services as an independent contractor and is responsible for its own taxes, insurance, personnel, and business operations.

13. Relationship to NDA

Part I is incorporated into this Agreement. If a project-specific Statement of Work conflicts with this packet, the parties should expressly identify which provision controls.

COMPANY / CLIENT

Legal Name: LaTarence Dunbar L3C

Authorized Representative: His Excellency Coach
LaTarence Dunbar Bey

Title: CEO | Founder

Signature: _____

Date: _____

DEVELOPER / CONTRACTOR

Legal Name: _____

Company: _____

Email: _____

Signature: _____

Date: _____

PART III - INTELLECTUAL PROPERTY ASSIGNMENT

For good and valuable consideration, the receipt and sufficiency of which are acknowledged, the undersigned Contractor agrees as follows:

- 6. Assignment. Upon payment for the applicable Work Product, Contractor assigns to Company all right, title, and interest in original Work Product created specifically within the authorized scope of the engagement, except identified Excluded Materials.
- 7. Work Made for Hire. To the extent legally qualifying, the parties intend qualifying commissioned Work Product to be treated as work made for hire.
- 8. Further Assurances. Contractor shall execute reasonable documents necessary to evidence or perfect the Company's ownership of assigned Work Product.
- 9. Excluded Materials. Contractor retains ownership of pre-existing materials specifically disclosed below. To the extent approved Excluded Materials are embedded in a deliverable, Contractor grants the Company the license expressly stated below and necessary to use the paid deliverable.
- 10. No Unauthorized Encumbrances. Contractor represents that, to its knowledge, it will not knowingly assign Work Product already subject to conflicting ownership rights or undisclosed restrictions.

Excluded / Pre-existing Materials

License for Approved Embedded Excluded Materials, if any

COMPANY / CLIENT	DEVELOPER / CONTRACTOR
Legal Name: LaTarence Dunbar L3C	Legal Name: _____
Authorized Representative: His Excellency Coach LaTarence Dunbar Bey	Company: _____
Title: CEO Founder	Email: _____
Signature: _____	Signature: _____
Date: _____	Date: _____

PART IV - DATA ACCESS & SECURITY ACKNOWLEDGMENT

Contractor Name: _____ Project: _____

Before receiving access, the Contractor acknowledges the following controls:

Control	Requirement	Initial
Company-owned accounts	Use Company-designated accounts for production systems whenever provided.	_____
MFA	Enable multifactor authentication wherever supported.	_____
Unique credentials	Never share assigned passwords, tokens, keys, or recovery methods.	_____
Least privilege	Access only what is required for the assigned work.	_____
No personal storage	Do not move Company data to personal email, drives, devices, repositories, or cloud accounts without written approval.	_____
No unauthorized AI uploads	Do not submit Company data, code, prompts, or client information to unapproved AI systems.	_____
No unauthorized exports	Do not bulk export, scrape, mirror, clone, or back up Company data except as authorized.	_____
Approved devices	Use reasonably secured devices and keep operating systems and security software reasonably current.	_____
Incident reporting	Immediately report suspected compromise, unauthorized access, lost devices, or accidental disclosure.	_____
Offboarding	Stop access immediately when instructed and return/delete Company information as required.	_____

I understand that system access is limited, revocable, logged where technically available, and provided solely for authorized work.

COMPANY / CLIENT

Legal Name: LaTarence Dunbar L3C

Authorized Representative: His Excellency Coach
LaTarence Dunbar Bey

Title: CEO | Founder

Signature: _____

Date: _____

DEVELOPER / CONTRACTOR

Legal Name: _____

Company: _____

Email: _____

Signature: _____

Date: _____

PART V - ACCESS AUTHORIZATION & OFFBOARDING CHECKLIST

A. Access Authorized

System / Service	Access Level	Approved By	Date

B. Offboarding / Revocation

- Disable user accounts and sessions.
- Rotate shared passwords and recovery methods.
- Revoke API keys, OAuth tokens, SSH keys, certificates, and deployment keys.
- Remove repository, cloud, hosting, database, domain/DNS, CRM, email, shared-drive, and project-management access.
- Transfer ownership/admin roles to Company-controlled accounts.
- Confirm receipt of current source code, documentation, deployment instructions, and credentials.
- Preserve audit logs and repository history as appropriate.
- Obtain written return/deletion certification where required.
- Review third-party integrations and remove contractor-created access paths.
- Document completion date and responsible administrator.

Offboarding Completed By: _____ Date/Time: _____

Notes:

PART VI - CONTRACTOR RETURN & DELETION CERTIFICATION

I, _____, certify that as of _____, subject to any legally required retention disclosed below, I have:

- Stopped accessing Company systems and accounts;
- Returned Company property and Company-controlled credentials in my possession or control;
- Deleted unauthorized local or cloud copies of Company Confidential Information;
- Deleted unauthorized repository clones, database exports, backups, API keys, tokens, and credentials;
- Not retained Company Confidential Information for independent use, sale, training, marketing, solicitation, or any other unauthorized purpose; and
- Disclosed below any Company information I am legally required to retain and the legal basis for that retention.

Legally required retained information, if any:

Legal basis / retention period:

COMPANY / CLIENT

Legal Name: LaTarence Dunbar L3C

Authorized Representative: His Excellency Coach
LaTarence Dunbar Bey

Title: CEO | Founder

Signature: _____

Date: _____

DEVELOPER / CONTRACTOR

Legal Name: _____

Company: _____

Email: _____

Signature: _____

Date: _____

IMPLEMENTATION NOTES FOR THE COMPANY

Use this packet with a project-specific Statement of Work. For stronger operational protection, the Company should control the repository, domain/DNS, hosting/cloud tenant, database owner account, billing account, app-store accounts, recovery email/phone, and production secrets from the beginning of the engagement.

Before onboarding a developer, create an individual account rather than sharing a master password. Grant only the permissions needed. At termination, revoke access first, preserve logs and repository history, rotate credentials, and then complete the offboarding checklist.

For projects involving consumer personal information, health information, payment-card information, education records, government identifiers, or other regulated data, obtain legal/security review and add the applicable privacy or data-processing terms.